

24CHCV03432 24CHCV03432

County: los-angeles

Division: Civil Law and Motion

Department: F47

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Case Number: 24CHCV03432 Hearing Date: September 17, 2026 Dept: F47

Dept. F47

Date: 9/17/26

TRIAL DATE: 5/3/27

Case #24CHCV03432

MOTION TO

COMPEL FURTHER RESPONSES

(Form

Interrogatories – Employment Law, Set 1)

Motion filed on 3/2/26.

MOVING PARTY: Plaintiff Krystal Huber

RESPONDING PARTY: Defendant Saugus Union School District

NOTICE: ok

RELIEF REQUESTED: An order compelling Defendant

Saugus Union School District to serve further responses to Plaintiff Krystal

Huber's Form Interrogatories – Employment Law, Set 1, Nos. 204.5, 204.6, 209.2, 214.1 and 216.1 served on 4/3/25.

Additionally, Plaintiff requests an order imposing sanctions against

Defendant and its counsel, McCune & Harber, and in favor of Salusky Law

Group in the amount of \$9,860.00.

RULING: The motion is granted as set forth below.

SUMMARY OF FACTS & PROCEDURAL HISTORY

This action arises out of the termination of Plaintiff Krystal Huber's (Plaintiff) employment as a teacher with Saugus Union School District (Defendant). On 9/23/24, Plaintiff filed this action against Defendant for: (1) Discrimination in Violation of FEHA; (2) Retaliation in Violation of FEHA; (3) Failure to Engage in an Interactive Process; (4) Failure to Reasonably Accommodate; (5) Failure to Prevent Discrimination and Retaliation in Violation of FEHA and (6) Retaliation in Violation of Labor Code 6310. On 1/21/25, Defendant answered the complaint.

On 4/3/25, Plaintiff served Defendant with Form Interrogatories – Employment Law, Set 1. (Aliazis Decl. ¶2, Ex.1). After being granted an extension to respond, on 5/30/25, Defendant served unverified responses to the interrogatories. (Id. ¶3, Ex.2). On 6/26/25, Plaintiff's counsel emailed Defendant's counsel regarding the responses Plaintiff found to be deficient. (Id. ¶4, Ex.3). On 8/9/25, Defendant emailed further responses with purported verifications which Plaintiff's counsel deemed to be invalid. (Aliazis Decl. ¶5). On 8/11/25, Plaintiff's counsel spoke with defense counsel, Asheesh Mohindru, regarding the responses and agreed that there was no deadline to file a motion to compel further responses because a proper verification had not been served. (Id. ¶6, Ex.4). On 10/10/25, Defendant served verifications for the responses to interrogatories. (Id. ¶¶7-8, Ex.5-6). On 2/25/26, Defendant served further responses to some of the interrogatories, but not to those at issue in this motion. (Id. ¶9, Ex.7).

The parties agreed multiple times to extend the deadline to file a motion to compel further responses with the last extension expiring on 3/20/26. (Aliazis Decl. ¶10, Ex.8).

On 3/2/26, Plaintiff filed and served the instant motion seeking an order compelling Defendant to serve further responses to Plaintiff's Form Interrogatories – Employment Law, Set 1, Nos. 204.5, 204.6, 209.2, 214.1 and 216.1 served on 4/3/25. Additionally, Plaintiff requests an order imposing sanctions against Defendant and its counsel, McCune & Harber, and in favor of Salusky Law Group in the amount of \$9,860.00. Defendant has opposed the motion and Plaintiff has filed a reply to the opposition.

ANALYSIS

CCP 2030.300 provides in relevant part:

“(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.

(b)(1)

A motion under subdivision (a) shall be accompanied by a meet and confer declaration under Section 2016.040.

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(c) Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to

which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response to the interrogatories.

(d) The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

If a timely motion to compel further responses is filed, the responding party has the burden of justifying any objection. Williams (2017) 3 C5th 531, 541-542; Fairmont Insurance Co. (2000) 22 C4th 245, 255; Coy (1962) 58 C2d 210, 220-221.

Defendant’s claim that the instant motion is untimely is without merit. Despite the fact that the motion includes evidence that Defendant initially served unverified responses to the interrogatories on 5/30/25 (which amount to no response See Appleton (1988) 206 CA3d 632, 636); that Plaintiff sent a meet and confer letter less than a month later on 6/26/26; that proper verifications for the responses were not served until 10/10/25; and that defense counsel agreed to extend the deadline to file a motion to compel further responses until 3/20/26, the opposition disingenuously argues that the motion is untimely when, in fact it was filed and served on 3/2/26, 18 days before the last agreed upon extension to file the motion. (See; Aliazis Decl. ¶¶3-8, 10, Ex.2-6, 8; Opposition, p.1:24-p.2:3).

Defendant’s claim that Plaintiff failed to adequately meet and confer before filing the motion is also without merit. The evidence establishes that Plaintiff’s counsel sent a meet and confer letter regarding the unverified responses less than a month after they were served; defense counsel agreed to provide further responses and Defendant never provided further responses to the interrogatories at issue in this motion. (See Aliazis Decl., Ex.3-4; Aliazis Reply Decl., Ex.4-6, 14-17, 20). Contrary to Defendant’s assertion, Plaintiff’s counsel’s meet and confer letter and the instant motion put Defendant on notice of the issues with the subject discovery responses.

As noted above, once the instant motion was filed, the burden shifted to Defendant to justify its objections to the subject form interrogatories which have already been approved by the Judicial Counsel. Defendant has failed to meet its burden. Additionally, any of the substantive responses provided, without waiving the unmeritorious objections, are incomplete and evasive (e.g. responses to Form Interrogatories 204.6, 214.1).

Plaintiff is entitled to an award of sanctions against Defendant and its counsel, McCune & Harber, for their failure to comply with their discovery obligations. CCP 2030.300(d). However, the Court finds that the \$9,860.00 requested is excessive. The Court finds that sanctions in the amount of \$4,460.00 sanctions are warranted (5 hours to prepare the motion + 2 hours to review the opposition and prepare the reply + 1 hour to prepare for and appear at the hearing multiplied by \$550/hour = \$4,400.00 + \$60.00 filing fee = \$4,460.00).

CONCLUSION

The motion is granted.
Defendant Saugus Union School District is ordered to serve further verified responses to Plaintiff Krystal Huber's Form Interrogatories – Employment Law, Set 1, Nos. 204.5, 204.6, 209.2, 214.1 and 216.1 within 20 days. served on 4/3/25. Additionally, Defendant and its counsel, McCune & Harber, are ordered to pay sanctions in favor of Salusky Law Group in the amount of \$4,460.00, payable within 20 days.